

		Defendant argues that Plaintiff has not identified an “act” attributed to ClearPath. There are no allegations as to how ClearPath discriminated, retaliated, failed to accommodate or engage in the interactive process with Plaintiff. Lyneer, and not ClearPath, terminated Plaintiff’s employment. Thus, the Complaint fails to allege a basis for the IIED claim. Accordingly, the demurrer to the eighth cause of action is SUSTAINED. Although the demurrer is unopposed, the court finds that Plaintiff should be given an opportunity to cure the defects in the operative complaint that were raised by Defendant in the demurrer. Plaintiff has 15 days leave to amend. Defendant ClearPath shall give notice.
6	Kwak vs. Mistry 2023-01307909	Motion to Set Aside/Vacate Dismissal Plaintiff William H. Kwak’s motion for order setting aside the dismissal entered on August 4, 2025 and restoring this action to the active civil docket is <i>conditionally</i> GRANTED. The court does consider the fact that plaintiff’s counsel filed an opposition to defendants’ motion to dismiss (ROA 124) and argued the motion to dismiss on 6/26/25 (ROA 132), therefore plaintiff’s argument there was “mistake, inadvertence, surprise, or neglect” under Code of Civil Procedure section 473, subdivision (b) is not compelling. But courts apply section 473 liberally in favor of relief if the opposing party will not suffer prejudice. (<i>Minick v. City of Petaluma</i> (2016) 3 Cal.App.5th 15 [reflecting the policy preference for resolving cases on their merits rather than on procedural defaults].) The dismissal shall be set aside upon payment of defendants’ reasonable attorney fees in the amount of \$4,000.00. The court has considered the time and expense incurred by defendants’ counsel which includes: preparing the motion to dismiss and reply brief; two court appearances associated with the motion to dismiss on 6/26/25 and 7/18/25; the opposition to plaintiff’s motion to set aside; and today’s court appearance. The court has relied on its own experience and knowledge as to the extent and nature of the services required in bringing and opposing the motions and finds \$4,000 in attorney’s fees to be reasonable.

		Plaintiff William Kwak is ordered to pay \$4,000 to the defendants' counsel Gulino Law Office by 7/13/26. Plaintiff Kwak to give notice.
7	Morel vs. The Irvine Company LLC 2025-01524966	Motion to Compel Arbitration Defendants IAC at Jamboree LLC and Irvine Management Company's (IMC) motion to compel arbitration is GRANTED. (See 9 U.S.C. § 1 et seq. [FAA]; <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346 (<i>Victrola</i>) [parties may incorporate the FAA]; <i>Quach v. California Commerce Club, Inc.</i> (2024) 16 Cal.5th 562, 582 [parties may incorporate the FAA's procedural provisions]; <i>Johnson v. Walmart Inc.</i> (9th Cir. 2023) 57 F.4th 677, 681 [FAA burdens]; <i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 (<i>Pinnacle</i>) [applying FAA].) Plaintiffs Helene Morel (Morel) and Shea Franko (Franko) are ORDERED to arbitrate their claims against defendants in accordance with the subject arbitration agreement. (Matosic Decl. at Ex. A [lease at arbitration (arb.) addendum].) <u>Existence of arbitration agreement.</u> Defendants have met their first-step burden to demonstrate the existence of an agreement to arbitrate the controversy by producing a copy of the alleged arbitration agreement (reciting the terms verbatim) attached as an addendum to the subject lease. (See Matosic Decl. ¶ 5, Ex. A [lease, arb. addendum].) (See Matosic Decl. ¶ 5, Ex. A; <i>Arthur Andersen LLP v. Carlisle</i> (2009) 129 S.Ct. 1896, 1902-1903 [under FAA, state contract law governs the validity, revocability, and enforceability of an arbitration agreement, including the question of whether an arbitration agreement may be enforced by a nonparty]; see <i>Banner Entertainment, Inc. v. Superior Court</i> (1998) 62 Cal.App.4th 348, 357 [the FAA does not apply until the existence of an enforceable arbitration agreement is established under state law principles]; <i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51-52 [three-step burden shifting process].) IAC may enforce the arbitration agreement as a party to that agreement. (See Matosic Decl. at Ex. A.) As for IMC, it signed the agreement as IAC's property management company and "duly authorized agent" (see <i>id.</i> at Ex. A [lease, pp. 1 & 6; arb. addendum, pp. 1-2]), and has been sued based on its acts/omissions in that capacity. (See, e.g., Compl. ¶¶ 1.2, 3.1-3.8; see also ROA